

## 25PSCV04462 25PSCV04462

County: los-angeles

Division: Civil Law and Motion

Department: 6

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Case Number: 25PSCV04462 Hearing Date: September 2, 2026 Dept: 6

CASE

NAME: Denise

Cortez v. General Motors LLC

Plaintiff's

Motion for Attorney Fees and Costs

TENTATIVE

RULING

The Court GRANTS Plaintiff's motion for attorney fees and costs IN PART in the amount of \$17,720.98, comprised of \$15,487.50 in attorney fees and \$2,233.48 in costs.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lemon law case. On December 12, 2025, plaintiff Denise Cortez (Plaintiff) filed this action against defendant General Motors LLC (Defendant) and Does 1 through 10, alleging causes of action for breaches of express and implied warranty arising from Plaintiff's purchase of a 2024 Cadillac LYRIQ in July 2024.

On July 20, 2026, the parties filed a Notice of Settlement of Entire Case.

On July 21, 2026, Plaintiff moved for attorney fees and costs. On August 20, 2026, Defendant filed its opposition. On August 26, 2026, Plaintiff filed her reply, supported by a supplemental declaration from her counsel.

## LEGAL STANDARD

"The following items are allowable as costs under Section 1032:... (10) Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." (Code Civ. Proc., § 1033.5, subd. (a)(10).) "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

The party seeking fees and costs bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.) To satisfy this burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 486-487.)

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney... involved in the presentation of the case.'" (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work. [Citation.]" (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

## DISCUSSION

## Summary of Arguments

### Plaintiff

seeks attorney fees and costs in the amount of \$28,847.77, plus a 50% multiplier of \$12,423.89, for a final award of \$37,271.66. Plaintiff contends she is entitled to attorney fees and costs as the prevailing party in this case. Plaintiff contends her attorney's lodestar fees are reasonable, her counsel's hourly rates are reasonable, and her counsel's billable hours are reasonable. Plaintiff contends the requested fees are consistent with fee awards in similar cases and that she is entitled to costs.

### In

opposition, Defendant highlights multiple billing entries totaling 29.73 hours that it contends are excessive and duplicative, and argues the Court should reduce the lodestar to \$12,045.27, plus \$1,2632.39 in costs.

## Analysis

### Prevailing Parties

There is no dispute here that Plaintiff is the prevailing party and therefore entitled to recover attorney fees and costs. The parties' settlement agreement provides that such fees and costs may be determined by way of a noticed motion. (Ledbetter Decl., Exh. 1; Civ. Code, § 1794, subd. (d); Code Civ. Proc., § 871.25.)

### Hourly Rates

#### Defendant

does not challenge Plaintiff's counsel's hourly rates. (See generally, Opp.) The Court finds Counsel's \$475 hourly rate reasonable based on his experience and qualifications as well as the complexity of the case and the quality of services provided.

#### Hours

#### Expended

### Plaintiff

also provided a verified fee bill, which is prima facie evidence that Plaintiff's

fees and costs listed therein were necessarily incurred. (Beck Amended Decl., Ex. 27; Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Defendant therefore bears the burden of challenging the specific portions of the fee bill it contends are improper or unreasonable. (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564 [burden is on challenging party to point to specific items challenged with sufficient argument and citations to the evidence, and failure to raise specific challenges in the trial court forfeits the claim on appeal].)

This action has been pending for approximately eight months and reflects no motion practice except for this fee motion. Moreover, there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers' vehicles, thereby triggering economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of lemon law case. Litigating this matter should not have required anything more than slight factual modification to existing boilerplate.

Considering these facts, this Court ultimately agrees with Defendant that in many instances, the time quoted is excessive under the circumstances. In light of the foregoing discussion, and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney fees in this case is 30.0 hours of work by attorney Ledbetter plus 5.5 hours of work by paralegal Keluis, for a subtotal of \$15,487.50.

The Court finds this to be the reasonable time spent on all tasks in the matter, including the time spent in support of this instant motion.

The Court finds no multiplier is warranted. This case was not novel or difficult, nor has Plaintiff established her counsel's work on this case precluded other employment. The contingent nature of the fee award is insufficient by itself to warrant a multiplier.

Costs and  
Expenses

Defendant  
challenges Plaintiff's claims to (1) jury fees, because the case did not

proceed to trial; (2) costs for preparation of a deposition transcript; and (3) "future expense[s]" not actually incurred.

The

Court finds jury fees and transcript costs reasonable and necessary for the litigation, but denies "future expenses" not actually incurred and strikes \$34.29 of Plaintiff's costs. Plaintiff presented evidence of \$80.47 in expenses incurred relating to the instant motion. The Court awards Plaintiff \$2,233.48 in costs.

#### CONCLUSION

The Court GRANTS Plaintiff's motion for attorney fees and costs IN PART in the amount of \$17,720.98, comprised of \$15,487.50 in attorney fees and \$2,233.48 in costs.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.